

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-19

PELOTON INTERACTIVE, INC.,

COMPLAINANT,

v.

FLEXPORT INTERNATIONAL LLC,

RESPONDENT.

**PELOTON’S MOTION FOR
CLARIFICATION OF SCHEDULING ORDER**

Complainant Peloton Interactive, Inc. (“Peloton”), by and through its undersigned counsel, respectfully requests clarification of the Presiding Officer’s August 22, 2025 Order on Respondent Flexport International LLC’s (“Flexport’s”) Second Motion (“Motion”) for Modification of the Scheduling Order (the “Order”). *See* Dkt. No. 85.

The Order granted Flexport’s Motion and extended Flexport’s deadline to submit its responsive brief from September 11, 2025 to September 15, 2025, but did not address Peloton’s corresponding deadline to file its reply brief. In response to Flexport’s Motion, Peloton stated “[i]n the event that the Presiding Officer grants Flexport’s extension request, however, Peloton respectfully requests that its reply deadline be extended to October 2, 2025.” Dkt. No. 83 at 2, 6.

Accordingly, Peloton respectfully requests clarification from the Presiding Officer regarding its reply deadline, and in particular whether its deadline will be adjusted to September 29 or October 2.

MEET AND CONFER CERTIFICATION

On August 25, 2025, Peloton counsel emailed Flexport counsel advising that it intended to file a motion for clarification of the scheduling order and requested Flexport's position on the motion. Flexport counsel responded that they consent to the September 29, 2025 deadline for Peloton's reply but do not consent to an extension until October 2, 2025.

Dated: August 25, 2025

Respectfully Submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed: August 25, 2025

/s/ Allison N. Skopec
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